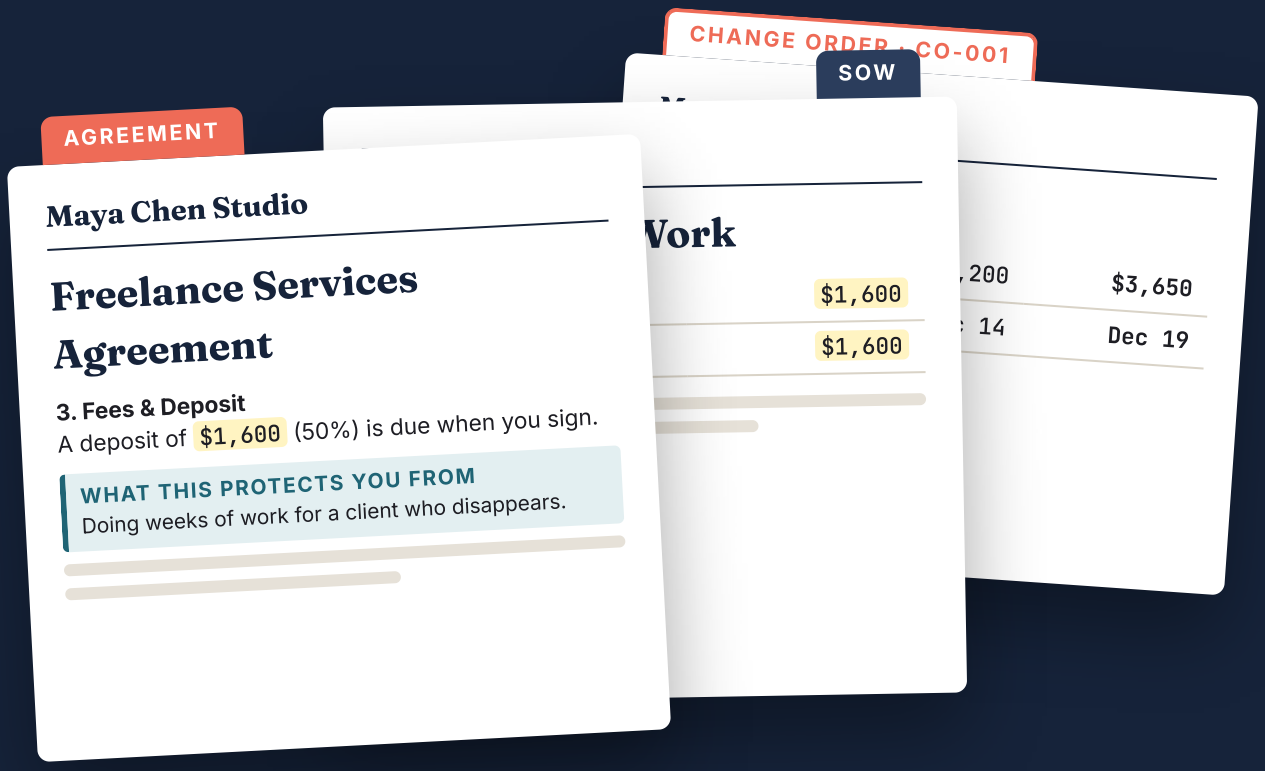
HUSTLE STUDIO · FREELANCER TOOLS

Freelance Contract & SOW Builder

Guide: plain-English clauses, clear scope, change orders.



HTML builder | Letter + A4 guide | Templates (MD) | 8 emails | 5 presets

Not legal advice. Not written by a lawyer.

All people and businesses in examples are fictional.

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How to read this guide

Read Chapter 1 and fill in your first contract (about 20 minutes). Use Chapter 2 when you choose between Flexible, Standard and Firm wording, and Chapter 3 when you write the scope. Keep Chapters 4 and 5 for the day a client asks for "just one more thing" or questions your terms. Before you sign someone else's contract, read Chapter 6.

Every example number in this guide comes from the five presets inside **contract-builder.html**, so what you read here is what you see when you load a preset.

> ⓘ **Not legal advice.** This guide and the builder were not written by a lawyer. They give you a clear, organized starting point and explain what each clause is for. Contract rules differ by country and state, so have a local lawyer review your agreement before you rely on it, especially the items in Chapter 7.

All people, businesses and projects in the examples (Maya Chen Studio, Northfield Bakery and the others) are fictional.

CHAPTER 01

How to use the builder

One form, three documents, and numbers that match everywhere.



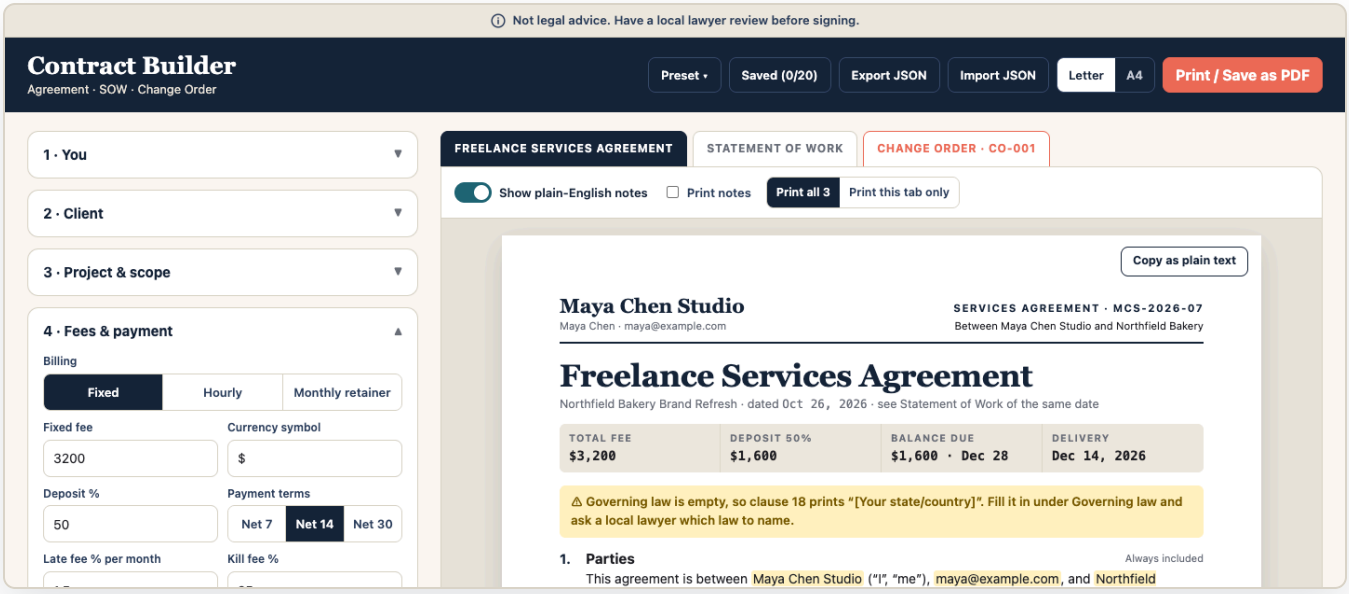
The files

File	What it is
`contract-builder.html`	The builder. Works offline in any modern browser. Start here.
`contract-guide-letter.pdf / -a4.pdf`	This guide, in US Letter and A4.
`contract-templates.md`	Agreement, SOW and Change Order as blank templates with every wording version, for Google Docs, Word or Notion.
`contract-emails.txt`	8 emails: sending the contract, follow-ups and client pushback.
`README.txt · cover.jpg`	File list, printing, privacy, support; product cover image.

Your first contract in six steps

1. **Open contract-builder.html** and choose a **Preset** that matches your work: Brand/Graphic Design, Web/Shopify Development, Copywriting/Content Writing, Marketing (retainer) or Consulting.
2. **Fill in 1 · You**: name, business, email, brand color and logo. These stay when you switch presets.
3. **Fill in 2 · Client and 3 · Project & scope**: dates, deliverables, the “Not included” list and milestones.
4. **Set 4 · Fees & payment**: billing type, amount, deposit %, Net 7/14/30, late fee, revision rounds and kill fee. Deposit, balance, due date and kill fee are calculated for you.
5. **Review the Agreement tab.** For each clause pick Flexible, Standard or Firm, or untick Include. Turn on **Show plain-English notes** to see what each clause protects you from.
6. **Fill in Governing law**, choose Letter or A4, then **Print / Save as PDF**. Send it with Email 1 from contract-emails.txt.

The builder at a glance



Real screen with the Design preset loaded: the form on the left, the Agreement on the right with notes switched on.

Worked example: Maya's brand project

Maya Chen runs a small brand studio. Northfield Bakery wants a brand refresh for a fixed fee of $3,200, with a 50% deposit, payment Net 14 after delivery and a 25% kill fee. Delivery is Dec 14, 2026. She types these numbers once:

```
Deposit 3,200 × 50% = 1,600 (due on signing, Oct 26, 2026)
Balance 3,200 - 1,600 = 1,600 (due Dec 14 + 14 days = Dec 28, 2026)
Kill fee 3,200 × 25% = 800
Review Dec 14 + 5 days = Dec 19, 2026 (acceptance window ends)
```

The builder shows `$1,600`, `$1,600 due Dec 28, 2026` and `$800` under Fees, and the same figures appear in the Agreement's key-facts strip, its payment clauses and the SOW's payment schedule. Change the fee to $3,600 and every document updates together.

PRINTING, SAVING AND PRIVACY

- **Print all 3** prints the Agreement, SOW and Change Order, each starting on a new page. **Print this tab only** prints the one you are viewing. Tick **Print notes** if you want the plain-English notes on paper.
- Print from Chrome or Edge to get "Not legal advice" and "Page x of y" in one footer line on every page, with the SOW or change order number added (for example "MCS-2026-07 · CO-001 · Page 6 of 6").
- **Saved (n/20)** keeps up to 20 contracts in your browser. **Export JSON** makes a backup file; **Import JSON** restores it. Nothing is uploaded: the builder makes no network requests.

CHAPTER 02

The clauses explained

What each clause says, what it protects you from, and which wording to pick.



The Agreement has 20 numbered clauses: 18 that every project needs and 2 that come from your profession preset. Twelve of them have three wordings.

Flexible gives the client more room. Pick it for a long-standing client, a small job, or when you need the work and the risk is low.

Standard is the default: fair to both sides and normal for freelance work. If you are unsure, stay here.

Firm protects you more and spells out consequences. Pick it for a new client, a large fee, a tight timeline, or after you have been burned.

Mixing wordings safely

You can choose a different wording for each clause, but keep two pairs on the same level:

- **Fees & Deposit** and **Cancellation & Kill Fee**: Flexible versions of both refund part of the deposit; Standard and Firm keep it. Do not combine a refundable deposit with a non-refundable one.
- **Payment Terms** and **Termination**: Firm versions of both let you pause or stop when payments are late. If you pick Firm for one, consider it for the other.

Excluding a clause

Untick **Include** and the clause turns grey on screen, disappears from the printout and the other clauses renumber. Parties and Signatures are always included. Clauses refer to each other by name, not number, so renumbering never breaks a reference; if you exclude Cancellation & Kill Fee, also check the Termination wording.

The next four pages cover the twelve clauses with three wordings. Page 10 lists the clauses with one wording and the preset clauses.

03 FEES & DEPOSIT

In plain English: States the price and how much is paid up front. The deposit is your booking fee: the client pays it to reserve your time.

PROTECTS YOU FROM
Doing weeks of work for a client who disappears. The deposit means you are never fully unpaid, and it shows the client is committed.

Standard wording: The fixed fee is `[Total Fee]`. A non-refundable deposit of `[Deposit Amount]` (`[Deposit %]`) is due when you sign. Work starts once the deposit is received.

FLEXIBLE
Pick when: Long-term client, low risk; you are willing to refund if nothing has started.

STANDARD
Pick when: New or normal client. Deposit is kept; work starts when it arrives.

FIRM
Pick when: New client, big fee or busy calendar: your dates are held only once the money clears.

04 PAYMENT TERMS & LATE FEE

In plain English: Says when the rest is due (Net days after delivery) and what happens if it is late.

PROTECTS YOU FROM
“We'll pay when we can.” A fixed date plus a late fee turns a vague promise into a deadline. Late-fee limits differ by place, so check yours.

Standard wording: The balance of `[Balance Amount]` is due `[Net Days]` days after delivery, on `[Balance Due Date]`. Late invoices carry a fee of `[Late Fee %]` per month on the unpaid amount.

FLEXIBLE
Pick when: Client with a good payment record; the late fee starts only after a 14-day grace period.

STANDARD
Pick when: Most projects: fixed date, monthly late fee from day one.

FIRM
Pick when: A client who paid late before, or a long project: you can pause work until paid.

05 REVISIONS

In plain English: Caps how many rounds of changes are included and prices extra rounds.

PROTECTS YOU FROM
Endless “one more tweak” rounds. A set number of rounds, and a price for extra ones, ends the loop politely.

Standard wording: The fee includes `[Revision Rounds]` rounds of revisions on the chosen direction. Each extra round is `[Extra Round Price]`, agreed in writing before I start it.

FLEXIBLE
Pick when: Small job or friendly client; tiny fixes stay free.

STANDARD
Pick when: Most projects: rounds on the chosen direction, extra rounds agreed in writing.

FIRM
Pick when: Clients who send feedback in pieces or change direction late.

06 CHANGE REQUESTS

In plain English: Explains how new work gets added: with a price and a date first.

PROTECTS YOU FROM
“Can you just add…” scope creep. Every extra has a price and a date before you do it.

Standard wording: New work or changes to the SOW are made with a numbered Change Order that states the price and time impact. I start changed work after we both sign it.

FLEXIBLE
Pick when: Small, frequent extras with a client you trust; an email OK is enough.

STANDARD
Pick when: Most projects: a numbered Change Order signed by both of you.

FIRM
Pick when: Projects with a history of creep: no extra work until signed and any extra deposit is paid.

07 CLIENT RESPONSIBILITIES & DELAYS

In plain English: Makes the client responsible for sending materials on time. If they are late, your deadline moves but your payment date does not.

PROTECTS YOU FROM
Waiting weeks for content and then waiting weeks to be paid. Your deadline moves when theirs slips, but your payday does not.

Standard wording: You will send the materials, access and feedback I ask for within 3 business days of my request. If materials you owe me arrive late, the delivery date moves by the same number of days. The final payment stays due on the original date (`[Balance Due Date]`).

FLEXIBLE
Pick when: Relaxed timelines; “a reasonable time, normally 5 business days”.

STANDARD
Pick when: Most projects: 3 business days, delivery moves day for day.

FIRM
Pick when: Busy calendars: 2 business days, plus up to 5 extra days to reschedule.

08 ACCEPTANCE

In plain English: Gives the client a fixed number of days to check the work against the SOW and list problems.

PROTECTS YOU FROM
A project that is never “finished”. A review window with a clear end turns “we're still looking at it” into a yes or a list.

Standard wording: After delivery, you have `[Acceptance Days]` days to tell me in writing about anything that doesn't match the SOW. I fix those items at no charge. If I hear nothing in that time, the work is accepted.

FLEXIBLE
Pick when: Clients who need time to involve others; no automatic acceptance.

STANDARD
Pick when: Most projects: silence after the window means accepted.

FIRM
Pick when: Clients who go quiet: public use also counts as acceptance.

09 INTELLECTUAL PROPERTY

In plain English: Ownership moves to the client when the full fee is paid; until then they have a license to use the work.

PROTECTS YOU FROM
Handing over everything and then chasing the balance. Ownership follows payment, so the client has a reason to pay on time.

Standard wording: Ownership of the final delivered work transfers to you once the full fee is paid. Until then, you have a license to use it for this project. Drafts, unused concepts and my own tools, templates and know-how stay mine.

FLEXIBLE	STANDARD	FIRM
Pick when: Simple wording for small jobs.	Pick when: Most projects: you keep drafts, unused concepts and your own tools.	Pick when: Large or slow-paying clients: the license ends if payment is 30+ days late.

10 PORTFOLIO RIGHTS

In plain English: Lets you show the work to future clients.

PROTECTS YOU FROM
Doing your best work and never being allowed to show it. Your next client wants to see this one.

Standard wording: I may show the finished work and a short description of the project in my portfolio and on social media after it is publicly launched, unless it contains your confidential information.

FLEXIBLE	STANDARD	FIRM
Pick when: Clients who are cautious about publicity; they can say no.	Pick when: Most projects: after public launch, unless confidential.	Pick when: Work you depend on for awards and case studies.

11 CONFIDENTIALITY

In plain English: Both sides keep the other's private business information private.

PROTECTS YOU FROM
A client who worries you will leak their plans, and a client who shares your prices or methods. Making it mutual protects you too.

Standard wording: Each of us will keep the other's non-public business information private, use it only for this project, and return or delete it when asked. This does not cover information that is already public.

FLEXIBLE	STANDARD	FIRM
Pick when: Simple one-way promise from you.	Pick when: Most projects: mutual, ends when information becomes public.	Pick when: Sensitive clients or industries: lasts 2 years after the agreement ends.

13 CANCELLATION & KILL FEE

In plain English: If the client cancels, they pay a set share of the fee for time you reserved.

PROTECTS YOU FROM
A client who cancels halfway after you turned down other work. The kill fee pays for the time you reserved.

Standard wording: If you cancel after this agreement is signed, you owe a kill fee of `[Kill Fee %]` of the fee (`[Kill Fee Amount]`), or the value of the work completed so far if that is higher. The deposit counts toward this amount and is not refunded.

FLEXIBLE	STANDARD	FIRM
Pick when: Friendly client: capped at the kill fee, deposit partly refundable.	Pick when: Most projects: kill fee or work done, whichever is higher.	Pick when: Big projects: kill fee plus all work done.

14 LIMITATION OF LIABILITY

In plain English: Caps how much you could owe if something goes wrong.

PROTECTS YOU FROM
One bad day costing more than the whole project. A cap ties your worst case to what you were paid. Some losses cannot be capped by law, so check locally.

Standard wording: My total liability under this agreement is limited to the fees you paid me under it. Neither of us is liable for indirect or consequential losses, such as lost profits or lost data.

FLEXIBLE	STANDARD	FIRM
Pick when: Clients who ask for more cover; cap at twice the fees.	Pick when: Most projects: cap at fees paid, no indirect losses.	Pick when: Higher-risk work: cap at 3 months of fees, client checks legal suitability.

17 TERMINATION

In plain English: How either side can end the agreement early. For a retainer it sets the minimum term and notice period.

PROTECTS YOU FROM
Being stuck with a client who stopped paying, or being dropped overnight. A clear exit and a notice period give both of you time to plan.

Standard wording: Either of us may end this agreement in writing if the other breaks it and doesn't fix the problem within 10 days of written notice. You pay for the work done up to the end date. If you end it for any other reason, the Cancellation & Kill Fee clause applies.

FLEXIBLE	STANDARD	FIRM
Pick when: Long-term clients: 14 days to fix a problem.	Pick when: Most projects: 10 days to fix, kill fee applies otherwise.	Pick when: You can stop if payment is 30+ days late.

Clauses with one wording

These are short and rarely negotiated, so the builder gives one clear version. The note under each is what the builder shows when plain-English notes are on.

#	Clause	Protects you from
1	**Parties**	Confusion about who owes you the money. Naming the client's business, not just the person you talk to, makes it clear who is bound.
2	**Services & Statement of Work**	Arguments about what was “obviously included”. The SOW is the written list both of you can point to.
12	**Independent Contractor Status**	Being treated like staff without staff benefits: fixed hours, daily check-ins, office rules. It also makes clear who handles tax. How this is judged depends on local law.
18	**Governing Law**	Arguing later about whose rules apply. Ask a local lawyer which state or country to name here.
19	**Entire Agreement**	“But you said on the call…” Only what is written in these documents counts, and changes have to be written down too.
20	**Signatures**	Starting work on a handshake. Typed names and dates on a copy you both keep show what was agreed. This builder does not create electronic signatures: sign by hand or with an e-signature service you trust.

Clause numbers in this guide are as printed with every clause included. If you exclude a clause, the ones after it move up.

Profession-specific clauses

Each preset adds two clauses between Limitation of Liability and Termination. If you switch preset, they switch too.

Preset	Clause 15	Clause 16
Brand/Graphic Design	Final Files & Source Files	Fonts, Stock Images & Printing
Web/Shopify Development	Hosting, Domains & Third-Party Tools	Support After Launch
Copywriting/Content Writing	Byline & Credit	AI Tools
Marketing (retainer)	Ad Spend & Paid Tools	Results & Platform Rules
Consulting	Advice, Not Guaranteed Results	Regulated Advice

CHAPTER 03

Scope: deliverables and “Not included”



The two lists that stop scope creep before it starts.

Four rules for the deliverables list

1. **Count things.** “Logo suite: primary, secondary and icon versions” beats “logo design”. Numbers make extras visible.
2. **Name the format.** PNG, SVG and PDF; an editable shared document; a recorded handover call.
3. **Set limits.** “Up to 150 products”, “up to 4,500 words in total”, “up to 30 minutes a day”.
4. **Write the “Not included” list from your last scope creep.** Every item a past client assumed was included goes here.

Design example: Northfield Bakery

✓ DELIVERABLES

- Logo suite: primary, secondary and icon versions
- Color palette with HEX, RGB and CMYK values
- Typography pairing (2 fonts) with usage rules
- Business card design (front and back)
- 8-page brand guidelines PDF
- Final files in PNG, SVG and PDF, in color and black and white

✕ NOT INCLUDED

- Website design or build
- Packaging and print management
- Photography
- Copywriting and taglines
- Editable source files (available by change order)

“Editable source files (available by change order)” turns the most common post-project request into a priced option.

Consulting example: Riverside Coffee Roasters (hourly)

✓ DELIVERABLES

- 2 discovery workshops (90 minutes each) with your team
- Review of your order, packing and delivery process
- Written report with 10 to 15 prioritized recommendations
- 90-day action plan with owners and dates
- One 60-minute follow-up call within 30 days of delivery

✕ NOT INCLUDED

- Carrying out the recommendations
- Software setup or staff training
- Legal, tax or accounting advice
- Supplier negotiations

For advice work, “Carrying out the recommendations” is the line that stops a report turning into an open-ended project.

Web development example: Harbor & Pine

✓ DELIVERABLES

- Customized Shopify theme: home, collection, product, cart and 4 content pages
- Import of up to 150 products from your spreadsheet
- Payment, shipping and tax settings configured with you
- Email signup form connected to your email platform
- Speed and mobile check before launch
- Launch-day support and a 45-minute handover call, recorded

✕ NOT INCLUDED

- Product photography and product descriptions
- Custom app development
- Paid apps, theme licenses and Shopify plan fees
- Maintenance after the 14-day support period
- Moving customer accounts or order history

The dev preset adds “Hosting, Domains & Third-Party Tools” and “Support After Launch”, so app fees and endless bug fixes are covered in the Agreement too.

Writing example: Brightpath Dental

✓ DELIVERABLES

- Copy for 6 website pages (Home, About, 3 service pages, Contact), up to 4,500 words in total
- SEO title and meta description for each page
- One 30-minute interview call with your team
- Delivered as an editable shared document with comments

✕ NOT INCLUDED

- Blog posts and email sequences
- Keyword research reports
- Uploading the text to the website
- Clinical accuracy review (your team approves clinical wording)
- Photography and graphics

A word limit plus “Uploading the text to the website” in Not included stops the job turning into web admin.

Retainer example: Greenleaf Yoga (monthly)

✓ MONTHLY DELIVERABLES

- 12 Instagram posts per month (design and captions)
- 8 stories per month
- Monthly content calendar, sent for approval by the 25th of the month before
- Replies to comments and messages on weekdays (up to 30 minutes a day)
- Monthly 1-page report and a 30-minute review call

✕ NOT INCLUDED

- Ad spend and boosted posts
- Photo and video shoots
- Paid scheduling or design tools
- Influencer fees
- Website changes

For a retainer the SOW lists monthly deliverables and adds Retainer terms: hours per month, extra hourly rate, minimum term and notice.

CHAPTER 04

Change orders

Say yes to more work without doing it for free.



When to send one

Send a change order whenever a request is not on the Deliverables list, or is on the “Not included” list. Common triggers:

- A new item: “Can you also do Instagram templates?”
- More of something: two extra pages, 50 more products, a third concept.
- A change of direction after approval (under the Firm Revisions wording this is a change, not a revision).
- A deadline the client wants earlier, which needs extra hours.

How to send one in five minutes

1. Open the **Change order** card. The first change on a contract is CO-001; **+ New change order** moves to CO-002, CO-003 and so on.
2. Write the title and 2 to 4 detail lines in the client's words.
3. Enter the price change (+ or –) and the time change in days. New total, new balance, new delivery date and new balance due date are calculated.
4. Print the Change Order tab only, and send it with Email 6.
5. Start the extra work after both of you sign. Until then, the original scope, price and dates apply.

Small extras: if you choose the Flexible Change Requests wording, a written email OK is enough. You can still print a change order to keep the numbers straight.

Revision or change order?

Revision (uses an included round): adjusting something already on the Deliverables list, inside the direction you agreed. Example: a different shade of green on the approved logo.

Change order (new price and date): something new, more of something, or, with the Firm Revisions wording, a new direction after approval. Example: a second logo concept.

A filled-in change order: CO-001

Three weeks in, Dana asks Maya for three Instagram post templates in the new brand. Maya prices it at $450 and five extra days.

Maya Chen Studio CO-001

Northfield Bakery Brand Refresh · issued Nov 20, 2026 · refers to agreement MCS-2026-07 and the SOW of Oct 26, 2026

What changes: Add 3 Instagram post templates using the new brand.

- 3 editable templates (feed post 1080×1350), delivered as layered files
- Uses the approved logo, colors and fonts; 1 revision round

	Before	Change	After
Total fee	$3,200	+ $450	$3,650
Deposit paid	$1,600	—	$1,600
Balance	$1,600	+ $450	$2,050
Delivery date	Dec 14, 2026	+ 5 days	Dec 19, 2026
Balance due (Net 14)	Dec 28, 2026	+ 5 days	Jan 2, 2027

```
3,200 + 450 = 3,650 · 3,650 - 1,600 = 2,050
Dec 14 + 5 days = Dec 19 · Dec 19 + 14 days = Jan 2, 2027
```

WHY THE BALANCE DUE DATE MOVES HERE, BUT NOT WHEN MATERIALS ARE LATE

A change order is new work both of you agreed to, so the new delivery date and the payment date move together. When the *client's* materials are late, the Client Responsibilities & Delays clause moves only your delivery date; the balance stays due on the original date (Dec 28, 2026 in Maya's case). Email 7 explains this to the client.

The same change order in two other presets

Preset · CO-001	What changes	New price	New dates
Web/Shopify Harbor & Pine, fixed fee	Wholesale order form page: +$900, +6 days	Total $6,800 → **$7,700** Balance $4,080 → **$4,980**	Delivery **Mar 11, 2027** (was Mar 5) Balance due **Mar 25** (was Mar 19)
Marketing retainer Greenleaf Yoga, monthly	Short videos, 8 per month: +$600 a month	Monthly $2,400 → **$3,000**	Minimum term still ends **Apr 3, 2027**

Load either preset and open the Change order card to see these numbers.

CHAPTER 05

When the client pushes back

Six common objections, and a calm reply for each.

Pushback is normal; it usually means the client is reading carefully. Reply in writing, keep it short, and offer a trade instead of a flat no.

CLIENT
“Can we skip the deposit? We always pay on completion.”

YOUR REPLY
I ask every client for a deposit because it reserves your start date and my time. I can do 30% instead of 50% if that helps your cash flow, with the balance on the same date.

Why it works: it explains the deposit as a booking, not a lack of trust, and offers a smaller number instead of zero.

CLIENT
“We need full ownership before we pay the final invoice.”

YOUR REPLY
You will have every final file on delivery day and can use them right away under the agreement's license. Ownership transfers the moment the balance is paid, which is due 14 days after delivery.

Why it works: the client loses nothing in practice; only the legal title waits for payment. Email 4 has the full version.

CLIENT
“Can you make it unlimited revisions? We want to get it right.”

YOUR REPLY
I want that too, which is why two rounds come with a direction we agree on first. Most changes fit in those rounds; if we need more, each extra round is $180 and you decide before I start.

Why it works: it reframes rounds as a process for getting it right, and puts the client in control of extra cost.

CLIENT
“Our standard payment terms are Net 60.”

YOUR REPLY
I understand larger teams work that way. As a small business I invoice Net 14. If Net 60 is fixed on your side, I can accept Net 30 with a 50% deposit, or Net 60 with the price adjusted to cover the wait.

Why it works: you give two concrete options, and both protect your cash flow.

CLIENT
“Please remove the kill fee. We won't cancel.”

YOUR REPLY
Then the clause will never cost you anything. It is there because I turn down other work to hold your dates. I can lower it from 25% to 15% if that makes it easier to sign.

Why it works: the client's own confidence becomes the reason the clause is harmless.

CLIENT
“We'd rather use our own contract.”

YOUR REPLY
Of course. Please send it over and I'll read it this week. I'll check that it covers the deposit, payment dates, revision rounds and ownership on payment; if anything is missing, I'll suggest attaching my SOW so the scope and numbers stay the same.

Why it works: you accept their paper but keep your scope and numbers. Read Chapter 6 before you sign it.

Three rules for any negotiation

- **Trade, don't cave.** A lower deposit for a shorter payment window; a lower kill fee for a later start.
- **Change it in the builder, then reprint.** Never edit numbers by hand on a PDF; the three documents must still match.
- **Know your walk-away.** Decide before the call which terms you will not drop. A deposit for new clients is a common one.

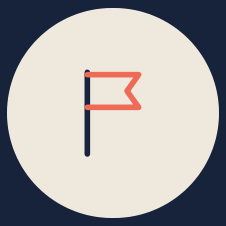
Trades you can offer

If the client asks for...	Offer this instead
No deposit	A 30% deposit, with the balance on the same date
Net 60	Net 30 with a 50% deposit, or Net 60 at a price that covers the wait
Unlimited revisions	Two rounds on an agreed direction, and a fixed price per extra round
No kill fee	A lower kill fee (for example 15% instead of 25%)

CHAPTER 06

12 red-flag clauses

What to look for when the client sends their own contract.



Red flags are not always deal-breakers, but each one is worth a question. Ask for the alternative in writing.

1 *"Payment is due 60 days after the client approves the invoice."*
Ask for instead: A fixed number of days after **delivery** (Net 14 or 30), not after an approval that may never come.

2 *"The client may terminate this agreement at any time without further payment."*
Ask for instead: Payment for work done plus a kill fee if they cancel for convenience.

3 *"All rights in the work transfer to the client upon creation."*
Ask for instead: Ownership transfers when the full fee is paid; a license to use the work until then.

4 *"The contractor will make revisions until the client is fully satisfied."*
Ask for instead: A set number of rounds and a price for extra rounds.

5 *"The contractor shall indemnify the client against any and all claims."*
Ask for instead: Limit it to claims caused by your own breach, make it mutual, and cap it.

6 *"The contractor will not work for any business in the client's industry for two years."*
Ask for instead: No non-compete; at most a short promise not to poach their staff or clients.

Read it in this order: payment terms, ownership, termination, then everything else. Those three decide whether you get paid and who controls your work.

7 *"All materials, tools and know-how used in the project become the client's property."*
Ask for instead: Your pre-existing tools, templates and methods stay yours; the client gets the final deliverables.

8 *"The contractor will be paid when the client receives payment from its own customer."*
Ask for instead: Fixed due dates that do not depend on anyone else paying the client.

9 *"The client may withhold payment if it is dissatisfied with the work."*
Ask for instead: A review window with a written list of what does not match the SOW, then payment.

10 *"The contractor is responsible for all costs, including software, fonts, stock and third-party fees."*
Ask for instead: Third-party costs paid by the client, at cost, after approval.

11 *"The contractor may never disclose that it worked for the client."*
Ask for instead: A time limit on confidentiality and permission to show public work in your portfolio.

12 *"Any dispute will be decided only by the courts of the client's home city."*
Ask for instead: A neutral or local venue, and a first step of talking in good faith; ask a lawyer (Chapter 7).

How to ask: "Thanks for sending this. I'm happy to work with your agreement. I'd like to adjust three points: [clause], [clause] and [clause]. Suggested wording is below." Then paste the wording from your own Agreement tab (Copy as plain text).

Sort every flag into one of three piles

- **Change before you sign:** anything that can stop you being paid (flags 1, 2, 8 and 9), hands over ownership before payment (3 and 7) or leaves the work open-ended (4).
- **Negotiate:** terms that are risky but often found in larger companies' paperwork, such as indemnity (5), a non-compete (6) or where disputes go (12). Ask for a narrower version and check it with a lawyer.
- **Accept with a clarification:** costs (10) and confidentiality (11), once you add a written line such as "fonts and stock billed at cost after approval" or "public work may be shown in my portfolio".

Example: flag 1, adjusted

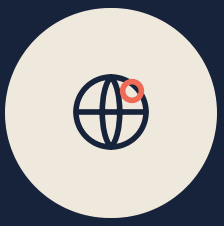
Their wording
"Payment is due 60 days after the client approves the invoice."

Your suggested wording
"The balance is due 14 days after delivery. Late invoices carry a fee of 1.5% per month on the unpaid amount."

CHAPTER 07

What to ask a lawyer

The terms that depend on where you and your client are.



A single review of your standard agreement by a local lawyer is often a fixed-fee job. Bring the printed Agreement with notes, and ask about these points.

Governing law and where disputes go

Which state or country to name in clause 18, and whether a client in another country changes that. The builder leaves “[Your state/country]” for this reason.

Late fees and interest

Many places limit how much interest or late fee you can charge, or how it must be stated. Check that your monthly % is allowed.

Independent contractor status

Tests for who counts as an employee differ by country and state (some US states use an “ABC test”; the UK has IR35 rules for some contracts). Ask what else your agreement or way of working should show.

How ownership is transferred

In some places a copyright transfer has to be in writing and signed, and “work made for hire” only covers certain kinds of work. Ask whether the Intellectual Property clause needs extra wording.

Non-refundable deposits and kill fees

Whether a fixed kill fee or non-refundable deposit is enforceable where you work, and how to phrase it.

Limits on liability

Which losses cannot be capped by law, and whether your cap should change for larger projects or insured work.

Signing electronically

Whether a scanned or e-signed copy is enough for you and your client, and which e-signature service to use. This builder does not create electronic signatures.

Clients who are consumers

If your client is a private person rather than a business, consumer rules (for example cancellation rights) may apply.

How to prepare for the review

1. **Print your standard version** from the builder with **Print notes** ticked, so the lawyer sees what each clause is meant to do.
2. **Mark your wording choices.** Write “Flexible”, “Standard” or “Firm” next to each clause number, and say which you use most often.
3. **Bring a real example**: one SOW and one change order from a recent project, with client names removed.
4. **Ask for edits as wording**, not just comments. You can paste approved wording into contract-templates.md and use it as your own master copy.
5. **Ask what to re-check** when you work with a client in another state or country, or start a much larger project.

Keep the reviewed version. Clause text inside the builder is fixed; you choose wordings and include or exclude clauses. If your lawyer rewrites a clause, keep the approved wording in contract-templates.md as your master copy and send that version from Google Docs or Word. Save your usual wording choices in the builder (Saved, up to 20).

CHAPTER 08

Checklist before you send

NUMBERS

- [ ] Total, deposit and balance in the key-facts strip match the payment schedule in the SOW.
- [ ] Delivery date and balance due date are right (Net 7, 14 or 30 after delivery).
- [ ] Late fee % and kill fee % are what you want; 0 means no late fee.
- [ ] Currency symbol is right for this client.

SCOPE

- [ ] Every deliverable has a count, format or limit.
- [ ] “Not included” lists at least three items, including your last scope-creep request.
- [ ] Milestones run in date order between start and delivery.
- [ ] Revision rounds and the extra-round price match what you quoted.

CLAUSES

- [ ] Fees & Deposit and Cancellation & Kill Fee use matching wordings (Chapter 2).
- [ ] Governing law is filled in (no yellow “[Your state/country]” warning).
- [ ] The two profession clauses fit this project.
- [ ] Excluded clauses are ones you really can do without.

SENDING

- [ ] Client company name is the legal business name; contact name and title are right.
- [ ] Agreement ref is unique (for example initials-year-number).
- [ ] Printed as PDF with Letter or A4 to suit the client; notes printed only if you want them.
- [ ] Sent with Email 1, with a date by which to sign; follow-up set for 3 business days later (Email 2).
- [ ] A local lawyer has reviewed your standard version at least once.

All five examples at a glance

These are the presets in the builder, so you can load any of them and compare. All are fictional.

Preset · example	Billing	Fee	Deposit	Due / term	Kill fee
Brand/Graphic Design Maya Chen Studio for Northfield Bakery	Fixed	$3,200	$1,600 50%	Balance $1,600 due Dec 28, 2026 (Net 14)	$800
Web/Shopify Development Oakline Web Co. for Harbor & Pine Outfitters	Fixed	$6,800	$2,720 40%	Balance $4,080 due Mar 19, 2027 (Net 14)	$1,700
Copywriting/Content Writing Priya Nair Words for Brightpath Dental Group	Fixed	$2,400	$1,200 50%	Balance $1,200 due Dec 11, 2026 (Net 7)	$600
Marketing (retainer) Ortiz Social for Greenleaf Yoga Studio	Retainer, 20 h/month	$2,400/mo	$2,400 100%	3 months min. ($7,200), 30 days notice	$600
Consulting Ellis Ops Consulting for Riverside Coffee Roasters	Hourly $150 × 24 h	$3,600	$1,080 30%	Balance $2,520 (est.) due Jan 17, 2027 (Net 30)	$900

The 8 emails in contract-emails.txt

#	Use it when	Subject line
1	Sending the contract and SOW	`Contract and Statement of Work for [Project Name]`
2	Contract not signed after 3 business days	`Quick check: contract for [Project Name]`
3	Client asks to drop the deposit	`Re: Deposit for [Project Name]`
4	Client wants full rights before final payment	`Re: Ownership of the [Project Name] files`
5	Client asks for unlimited revisions	`Re: Revisions on [Project Name]`
6	Sending a change order	`Change Order [CO Number] for [Project Name]`
7	Client materials are late	`[Project Name]: new delivery date (payment date unchanged)`
8	Retainer renewal or rate change	`Your retainer from [Effective Date]: renewal and new rate`

If you also use our Proposal Builder or Client Onboarding Kit, the order is: proposal, then this agreement and SOW, then onboarding. They are separate products and not needed to use this one.

ⓘ Not legal advice. Have a local lawyer review before signing. Questions about the files: chenphien@gmail.com (14-day refund, see README.txt).